

26SMCV01997 26SMCV01997

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-15

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Case Number: 26SMCV01997 Hearing Date: September 15, 2026 Dept: P

Tentative

Ruling

Shirley

Shelly Bradley v. The Regents of the University of California, Case No.

26SMCV01997

Defendant's

Demurrer with Motion to Strike

Hearing

Date: September 15, 2026

Demurrer

On April

9, 2026, Plaintiff Shirley Shelly Bradley sued Defendants The Regents of the University of California and UCLA Health Auxiliary for (1) Dependent and Elder Abuse/Neglect; (2) willful misconduct; and (3) medical negligence. Bradley alleges that she developed pressure ulcers while she was receiving medical treatment at the UCLA Santa Monica Medical Center between April 28, 2025 and July 3, 2025.

On May 28,

2026, Bradley dismissed Defendant UCLA Health Auxiliary.

On June

11, 2026, The Regents filed this demurrer and motion to strike. The regents

argue that Plaintiffs do not plead compliance with the claim presentation requirement of the government tort claims act.

The

Government Tort Claims act requires claims “relating to a cause of action for death or for injury to a person or to personal property” to be presented to the public entity “not later than six months after the accrual of the cause of action.” (Gov. Code § 911.2(a).) A failure to allege facts demonstrating or excusing compliance with the claim presentation requirements subjects a claim to a demurrer for failure to state a claim. (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1239 (“Bodde”).)

Here,

Bradley only alleges that “Plaintiff has complied with applicable claim statutes.” (Complaint, ¶ 9.) This allegation is conclusory and does not satisfy the requirements of Bodde, supra.

Because

the Court sustains The Regents’ demurrer based on a lack of detail, leave to amend is appropriate. The Regent’s demurrer is SUSTAINED with twenty (20 days leave to amend.

Because the

demurrer is sustained with leave to amend, the motion to strike is moot.